

In the Supreme Court of the United States

LINDA McMAHON, ET AL., APPLICANTS

v.

STATE OF NEW YORK, ET AL.

**APPLICATION TO STAY THE INJUNCTION ISSUED
BY THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MASSACHUSETTS
AND REQUEST FOR AN IMMEDIATE ADMINISTRATIVE STAY**

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PARTIES TO THE PROCEEDING

Applicants (defendants-appellants below) are Linda McMahon, Secretary of Education; Donald J. Trump, President of the United States; and the United States Department of Education.

Respondents (plaintiffs-appellees below) are the State of New York; Commonwealth of Massachusetts; State of Hawaii; State of California; State of Arizona; State of Colorado; State of Connecticut; State of Delaware; State of Illinois; State of Maine; State of Maryland; State of Minnesota; State of Nevada; State of New Jersey; State of Oregon; State of Rhode Island; State of Washington; State of Wisconsin; State of Vermont; Dana Nessel, Attorney General for the People of Michigan; District of Columbia; Somerville Public Schools; Easthampton Public Schools; American Federation of Teachers; American Federation of Teachers Massachusetts; American Federation of State, County, and Municipal Employees, Council 93; American Association of University Professors; and Service Employees International Union.

RELATED PROCEEDINGS

United States District Court (D. Mass.):

New York v. McMahon, No. 25-cv-10601 (May 22, 2025)

Somerville Public Schools v. Trump, No. 25-cv-10677 (May 22, 2025)

United States Court of Appeals (1st Cir.):

New York v. McMahon, Nos. 25-1495, 25-1500 (June 4, 2025)

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No. 24A

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Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Linda McMahon, et al.—respectfully files this application to stay the preliminary injunction issued by the United States District Court for the District of Massachusetts (App., *infra*, 1a-88a), pending the consideration and disposition of the government’s appeal to the United States Court of Appeals for the First Circuit and, if the court of appeals affirms the injunction, pending the timely filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court. In addition, the Solicitor General respectfully requests an immediate administrative stay of the district court’s order pending the Court’s consideration of this application.

For the second time in three months, the same district court has thwarted the Executive Branch’s authority to manage the Department of Education despite lacking jurisdiction to second-guess the Executive’s internal management decisions. This Court curtailed that overreach when the district court attempted to prevent the De-

partment from terminating discretionary grants. See *Department of Educ. v. California*, 145 S. Ct. 966 (2025) (per curiam). In this case, the district court is attempting to prevent the Department from restructuring its workforce, despite lacking jurisdiction several times over. Intervention is again warranted.

Nearly three months ago, the Department of Education announced a reduction in force (RIF) involving 1378 employees. That RIF effectuates the Administration’s policy of streamlining the Department and eliminating discretionary functions that, in the Administration’s view, are better left to the States. The government has been crystal clear in acknowledging that only Congress can eliminate the Department of Education. And the government has acknowledged the need to retain sufficient staff to continue fulfilling statutorily mandated functions and has kept the personnel that, in its judgment, are necessary for those tasks. The challenged RIF is fully consistent with that approach.

Nevertheless, on May 22, 2025, the district court issued a sweeping preliminary injunction with immediate effect, ordering the Department to reverse the RIF, reinstate all affected employees to active status, produce status reports starting within two business days and continuing every week thereafter, and pursue myriad other measures to turn back the clock at the Department of Education “to the status quo prior to January 20, 2025.” App., *infra*, 88a. And the district court enjoined the Department and the Secretary from taking any steps to “implement[]” or “giv[e] effect to” the President’s executive order to restore control over education to the States and communities, to the extent permitted by law. *Ibid*. As justification, the court asserted that the Secretary has “dismantle[d]” the Department “by firing nearly the entire staff,” *id.* at 57a, notwithstanding that 2183 employees (plus numerous contractors) remain—most of the pre-RIF workforce—and the Department remains committed to

implementing its statutorily mandated functions.

That preliminary injunction epitomizes many of the same errors in recent district-court injunctions usurping control of the federal workforce.¹ To start, Article III limits federal courts to deciding concrete cases and controversies, not adjudicating abstract policy disagreements disconnected from the relief sought. Here, respondents—who are not Department employees, but end-users of government services—asserted standing based on the theory that the reduction in the Department’s workforce might affect the quality or promptness of Department services. The district court thus blocked the Department’s entire RIF and ordered nearly 1400 employees reinstated based on speculation that terminating those employees might have downstream effects, such as delaying particular funding distributions or slowing down programs. Contrary to the court of appeals’ assertion, the district court’s holding—and the declarations upon which it rests—cannot plausibly be read to reach an “evidence-based conclusion” that the RIF has “effectively shut down” the Department, not least because the declarations themselves all employ speculation and were largely made only three days after the RIF took effect. App., *infra*, 165a, 167a. Rather, the district court’s theory of standing, based solely on hypothetical downstream effects, is too

¹ E.g., *AFGE v. Trump*, No. 25-cv-3698, 2025 WL 1482511 (N.D. Cal. May 22, 2025), stay denied, No. 25-3293, 2025 WL 1541714 (9th Cir. May 30, 2025); *Rhode Island v. Trump*, No. 25-cv-128, 2025 WL 1303868 (D.R.I. May 6, 2025), administrative stay denied, No. 25-1477 (1st Cir. May 27, 2025); *Widakuswara v. Lake*, No. 25-cv-1015, 2025 WL 1166400 (D.D.C. Apr. 22, 2025), stay granted, No. 25-5144, 2025 WL 1288817 (D.C. Cir. May 3, 2025) (per curiam); *Abramowitz v. Lake*, No. 25-cv-887, 2025 WL 1176796 (D.D.C. Apr. 22, 2025), stay granted, No. 25-5144, 2025 WL 1288817 (D.C. Cir. May 3, 2025) (per curiam); *Maryland v. USDA*, No. 25-cv-748, 2025 WL 973159 (D. Md. Apr. 1, 2025), stay granted, No. 25-1248, 2025 WL 1073657 (4th Cir. Apr. 9, 2025); *National Treasury Emps. Union v. Vought*, No. 25-cv-381, 2025 WL 942772 (D.D.C. Mar. 28, 2025), appeal dismissed, No. 25-5132, 2025 WL 1385557 (D.C. Cir. May 12, 2025) (per curiam); *AFGE v. OPM*, No. 25-1780, 2025 WL 820782 (N.D. Cal. Mar. 14, 2025), stay granted, No. 24A904, 2025 WL 1035208 (U.S. Apr. 8, 2025).

speculative and causally remote to establish a cognizable injury, let alone causation or redressability. Article III does not empower district courts to presume that all 1400 employees must be reinstated to their previous jobs and functions based on anecdotal speculation about impairment of some of the Department's services.

On top of that is a further jurisdictional bar: Congress created a different, comprehensive framework for resolving legal challenges to federal personnel actions via the Civil Service Reform Act of 1978 (CSRA). That reticulated process allows employees—not (as here) States, school districts, or teachers' unions—to seek reinstatement. And it requires them to do so before the Merit Systems Protection Board (MSPB)—not in federal district courts. Strangers to the employment relationship should not be able to leapfrog that process and leverage federal-court injunctions to force mass reinstatements. The First Circuit credited the government's "concern that the CSRA may not be bypassed" by reframing challenges to employment terminations as Administrative Procedure Act (APA) suits, but it inexplicably rejected that concern as to larger-scale terminations. App., *infra*, 160a. The CSRA channels all personnel actions, whether single terminations or RIFs. Courts should not usurp Congress's choices by creating extra-statutory exceptions.

The district court's remedy—an injunction undoing the Executive Branch's decisions about how many employees to devote to statutory functions—compounds the constitutional offense. The Constitution vests the Executive Branch, not district courts, with the authority to make judgments about how many employees are needed to carry out an agency's statutory functions, and whom they should be. Federal courts lack equitable authority to compel reinstatement outside of express statutory schemes. And where courts have that authority, this Court has demanded a heightened showing of necessity to guard against the profound separation-of-powers con-

cerns that arise from judicial intervention in executive-branch personnel policy. *Sampson v. Murray*, 415 U.S. 61, 83 (1974). The injunction rests on the untenable assumption that *every* terminated employee is necessary to perform the Department of Education’s statutory functions. That injunction effectively appoints the district court to a Cabinet role and bars the Executive Branch from terminating *anyone*, even though respondents conceded that some other RIFs would plainly be proper. App., *infra*, 101a, 114a, 135a.

As the First Circuit recognized, the preliminary injunction imposes irreparable harm insofar as it requires the government to pay salaries it cannot possibly recoup. App., *infra*, 169a. Beyond that, the injunction forces the government to shoulder the massive administrative undertaking of reinstating large numbers of employees, subject to ongoing judicial supervision, on pain of potential contempt proceedings. Indeed, the district court already scheduled an emergency compliance hearing for this coming Monday, June 9, at 3 p.m. The court ordered that the Department of Education restore nearly 1400 employees to jobs and functions they have not performed in over two months, no matter the upheaval for the Department or the employees themselves—an ironic result given the court’s professed solicitude for the efficient discharge of the Department’s statutory duties. On the flip side, respondents’ attenuated concerns over diminished government services do not establish irreparable harm. This Court issued a stay after the same district court committed similar errors in *Department of Education*, 145 S. Ct. at 968-969, and should do so again here.

STATEMENT

1. Congress created the Department of Education in 1979. See Department of Education Organization Act, Pub. L. No. 96-88, 93 Stat. 668. That legislation established the Department, § 201, 93 Stat. 671, and many entities within it, §§ 203-

214, 93 Stat. 673-677. As of January 20, 2025, the Department had 4133 employees. See Press Release, U.S. Dep’t of Educ., *U.S. Department of Education Initiates Reduction in Force* (Mar. 11, 2025), <https://perma.cc/7485-CZFU> (RIF Press Release).

President Trump campaigned on a proposal to abolish the Department. App., *infra*, 2a & n.1. Once in office, the President signed an executive order reiterating that “[c]losing the Department of Education would provide children and their families the opportunity to escape a system that is failing them.” Exec. Order No. 14,242, 90 Fed. Reg. 13,679, 13,679 (Mar. 25, 2025). But the executive order does not order the Department’s closure; instead, it directs the Secretary to facilitate closure “to the maximum extent appropriate and permitted by law.” *Id.* § 2, 90 Fed. Reg. at 13,679. The government has repeatedly acknowledged—and acknowledges again now—that the Department cannot be closed without an act of Congress.² Indeed, on Tuesday, June 3, Secretary McMahon requested a \$66.7 billion appropriation from Congress to “preserv[e] key programs” including “full funding” for school districts and children with disabilities. *The President’s Fiscal Year 2026 Budget: Hearing Before the Subcomm. on Labor, Health and Human Services, Education, and Related Agencies of the Senate Comm. on Appropriations*, 119th Cong., 1st Sess. 2-3 (2025) (statement of Linda McMahon, Sec’y, U.S. Dep’t of Educ.) (McMahon Testimony).

2. The Executive Branch cannot unilaterally close the Department, but it retains significant authority to trim its workforce and its performance of discretion-

² See Filip Timotija, *Education secretary: Mass layoffs first step toward total shutdown*, The Hill (Mar. 12, 2025), <https://thehill.com/homenews/education/5190161-linda-mcmahon-education-department-mass-layoffs> (Secretary of Education: “[W]e know we’ll have to work with Congress” to close Department); 25-cv-10677 D. Ct. Doc. 38, at 13 (Apr. 11, 2025) (“[T]he Department of Education is not closed. And it will not be closing without congressional action.”); App., *infra*, 130a (Government counsel: “Our brief comes out and acknowledges that the Department of Education is not closed and it is not closing absent an act of Congress.”).

ary functions. To that end, the Administration first terminated a host of discretionary grants to eliminate inefficiency and wasteful spending at the Department. After review, the Department terminated 104 grants as contrary to law or to the Department’s policies and priorities. Appl. at 6, *Department of Educ. v. California*, 145 S. Ct. 966 (2025) (No. 24A910). The United States District Court for the District of Massachusetts issued a putative temporary restraining order “enjoining the Government from terminating” the grants and “requir[ing] the Government to pay out past-due grant obligations and to continue paying obligations as they accrue.” *Department of Educ.*, 145 S. Ct. at 968. This Court stayed that order because the district court likely “lacked jurisdiction to order the payment of money under the APA.” *Ibid.*

The Executive Branch can also curb inefficiency and waste through a reduction in force (RIF), whereby agencies can release a large number of employees for myriad reasons, including “lack of work,” “shortage of funds,” or “reorganization.” 5 C.F.R. 351.201(a)(2); see generally 5 U.S.C. 3502. On March 11, 2025, the Department announced a RIF affecting 1378 employees—about a third of its workforce. RIF Press Release.³ The affected employees were placed on administrative leave on March 21; “all impacted employees will receive full pay and benefits until June 9th.” *Ibid.*

The announcement stated that the Department would “continue to deliver on all statutory programs that fall under the agency’s purview, including formula funding, student loans, Pell Grants, funding for special needs students, and competitive grantmaking.” RIF Press Release. The Department also reiterated to interested parties that the RIF “will not directly impact students and families,” that “critical func-

³ The press release indicates that the RIF affects “nearly 50% of the Department’s workforce,” but that figure includes 572 employees who opted for deferred resignation or voluntary separation. RIF Press Release. Respondents are not seeking relief regarding those employees. See, e.g., App., *infra*, 132a.

tions for elementary and secondary education will not be impacted by these cuts,” that “funds will continue to flow normally, and program functions will not be disrupted,” and that “the Department’s critical work supporting individuals with disabilities” will be unaffected. D. Ct. Doc. 71-6, at 2 (Mar. 24, 2025)⁴; see also D. Ct. Doc. 71-7 (Mar. 24, 2025) (similar commitment concerning higher-education functions). The Department thus confirmed that the RIF, like the Department’s previous termination of discretionary grants, would exclusively eliminate activities left to agency discretion and that the Department would continue performing its statutorily mandated functions unless and until Congress provides otherwise.

Finally, on March 21, the President indicated at a press conference that he had determined that the Small Business Administration would take over the Department’s student-loan portfolio, and that the Department of Health and Human Services would handle special education, nutrition, and related services. App., *infra*, 59a. Neither the district court nor respondents have identified any concrete steps taken by the Department to effectuate any such transfer.

3. As to administrative and judicial review of personnel decisions, the CSRA, enacted in 1978, “established a comprehensive system for reviewing personnel action taken against federal employees.” *United States v. Fausto*, 484 U.S. 439, 455 (1988). Under the CSRA, most civilian employees can appeal terminations and other major adverse personnel actions to the MSPB. 5 U.S.C. 7512, 7513(d), 7701. Implementing regulations also expressly authorize employees who have been “furloughed for more than 30 days, separated, or demoted by a reduction in force action” to challenge a RIF before the MSPB, where class-wide litigation is possible. 5 C.F.R.

⁴ All docket citations are to *New York v. McMahon*, No. 25-cv-10601 (D. Mass.), unless otherwise indicated.

351.901; see 5 C.F.R. 1201.27.

In such proceedings, employees might raise arguments with broader consequences, such as that a RIF exceeds an agency's authority or prevents an agency from carrying out its statutory functions. Cf. *Elgin v. Department of the Treasury*, 567 U.S. 1, 12 (2012) (rejecting "an exception to CSRA exclusivity for facial or as-applied constitutional challenges to federal statutes" because "[t]he availability of administrative and judicial review under the CSRA generally turns on the type of civil service employee and adverse employment action at issue"). The CSRA empowers the MSPB to order relief, including reinstatement. 5 U.S.C. 1204(a)(2), 7701(g). Employees aggrieved by final decisions of the MSPB may obtain review in the Federal Circuit. 5 U.S.C. 7703(a)(1) and (b)(1). We are informed that at least two employees affected by the Department's RIF here have already filed individual appeals with the MSPB, and more appeals would presumably follow the employees' separation date.

A separate part of the CSRA, the Federal Service Labor-Management Relations Statute (FSLMRS), governs labor relations between the Executive Branch and its employees and provides another avenue of administrative and judicial review of personnel actions. See 5 U.S.C. 7101-7135; *AFGE v. Trump*, 929 F.3d 748, 752 (D.C. Cir. 2019). Under the FSLMRS, unions representing federal employees must bring labor disputes, including complaints of unfair labor practices, before the Federal Labor Relations Authority (FLRA). 5 U.S.C. 7105(a)(2); *AFGE*, 929 F.3d at 755. Review of the FLRA's decisions is available in the courts of appeals. 5 U.S.C. 7123(a).

4. This application involves two consolidated lawsuits: one filed just two days after the Department's RIF announcement by States on behalf of their residents, schools, state universities, state regulators, and others; and one filed about two weeks after the announcement by school districts and unions representing teachers and

other school and university employees. Both sets of respondents are beneficiaries of Department services. They have raised constitutional, ultra vires, and APA claims. App., *infra*, 4a-5a. Each suit rests on respondents’ belief that the RIF will render the Department less effective in performing statutory functions on which respondents rely, thereby harming anyone who relies on those functions. For example, the States claim that the RIF “increas[es] the likelihood of delays and other problems in processing FAFSA [Free Application for Federal Student Aid] applications.” D. Ct. Doc. 70, at 34 (Mar. 24, 2025). Both suits sought a preliminary injunction blocking the Department from proceeding with the RIF. See *id.* at 40; 25-cv-10677 D. Ct. Doc. 26, at 34 (Apr. 1, 2025); see also App., *infra*, 101a.

On May 22, 2025, almost a month after a hearing on respondents’ motions for a preliminary injunction and over two months after the RIF announcement, the district court granted the motions. See App., *infra*, 1a-88a. Notwithstanding the government’s concessions that it cannot close the Department without Congress’s approval, the court’s opinion proceeds from the premise that the case concerns “an attempt by Defendants to shut down the Department without Congressional approval.” *Id.* at 2a. As to standing, the court found that respondents have shown that “their harms stem from the Department’s inability to effectuate vital statutory functions” because of the RIF. *Id.* at 42a.

The district court rejected the government’s contention that the CSRA has divested it of jurisdiction. The court reasoned that respondents “are not federal employees or labor unions who have access to the MSPB or FLRA,” and that the CSRA is thus inapplicable. App., *infra*, 43a. The court relied on a district court decision in another challenge to a purported RIF brought by non-employee plaintiffs, *Maryland v. USDA*, No. 25-cv-748, 2025 WL 973159 (D. Md. Apr. 1, 2025)—a decision the

Fourth Circuit stayed after concluding that the district court likely lacked jurisdiction, *Maryland v. USDA*, No. 25-1248, 2025 WL 1073657, at *1 (Apr. 9, 2025). The district court then concluded that respondents are likely to succeed on the merits because, in the court’s view, the RIF was a unilateral effort to close the Department and a unilateral closure would violate the separation of powers, App., *infra*, 46a-50a, be ultra vires, *id.* at 50a-52a, and violate the APA, *id.* at 52a-63a.

The district court concluded that the remaining stay factors favor respondents. The court held that respondents “are likely to suffer irreparable harm in the form of [(1)] financial uncertainty and delay damaging student education, (2) impeded access to vital knowledge upon which students, districts, and educators rely, and (3) loss of essential services provided by the office of Federal Student Aid and the Office for Civil Rights.” App., *infra*, 84a. The court decided that the equitable balance favors respondents, given the public interest in following the law and the importance of education. *Id.* at 85a-87a.

The district court thus entered a preliminary injunction enjoining the RIF in toto and enjoining the implementation of further presidential actions as well. Among other things, the court:

- enjoined the government “from carrying out the reduction-in-force announced on March 11, 2025; from implementing President Trump’s March 20, 2025 Executive Order; and from carrying out the President’s March 21, 2025 Directive to transfer management of federal student loans and special education functions out of the Department,” App., *infra*, 88a;
- ordered the government to “reinstate federal employees whose employment was terminated or otherwise eliminated on or after January 20, 2025, as part of the reduction-in-force announced on March 11, 2025 to restore the Depart-

ment to the status quo such that it is able to carry out its statutory functions,” *ibid.*; and

- required the government to submit a status report “within 72 hours” and weekly thereafter, “until the Department is restored to the status quo prior to January 20, 2025,” *ibid.*

Although the government had requested that the district court stay any injunction pending appeal, see 25-cv-10677 D. Ct. Doc. 38, at 27 (Apr. 11, 2025), the court made its injunction “effective immediately upon entry,” App., *infra*, 88a. The court later denied the government’s separate stay motion. *Id.* at 142a-144a.

5. On May 23, the government sought a stay pending appeal and an immediate administrative stay from the court of appeals. The court of appeals denied an administrative stay on May 27 and a stay on June 4. App., *infra*, 145a-173a. According to the court, the district court had made “detailed and extensive factual findings” that “the Department was already unable to carry out statutorily assigned functions in consequence of the RIF.” *Id.* at 156a. Based on those purported findings, the court of appeals held that respondents had alleged a non-speculative, impending injury as required for Article III standing. *Id.* at 156a-157a.

The court of appeals also rejected the government’s arguments that the CSRA deprived the district court of jurisdiction. App., *infra*, 159a-162a. The court “appreciate[d] [the government’s] concern that the CSRA may not be bypassed by the mere recharacterization of a challenge to a termination of employment.” *Id.* at 160a. But the court was “loath at this juncture of the proceedings” to read the CSRA as barring challenges to “firing [agency] employees en masse.” *Id.* at 160a-161a.

On the merits, the court of appeals did not address respondents’ constitutional claims, but concluded that the government had not met its burden to show that the

district court’s APA ruling was erroneous, relying again on what it described as the district court’s “record-based findings about the extent of the RIF” and “the intent * * * to shut down the Department.” App., *infra*, 162a-165a.

As to the ordered remedy to reinstate nearly 1400 employees, the court of appeals questioned whether the government preserved its challenge but determined that the district court could properly order reinstatement of Department employees. App., *infra*, 166a-168a. The court of appeals acknowledged “the ‘traditional unwillingness of courts of equity to enforce contracts for personal service either at the behest of the employer or of the employee.’” *Id.* at 166a (citation omitted). But in the court’s view, courts of equity have the “authority to remedy the effective disabling of a cabinet department of its statutorily assigned functions,” even where “that disabling was effectuated through the mass termination of the department’s employees.” *Id.* at 166a-167a.

Finally, on the equities, the court of appeals recognized the irreparable harm of requiring the government to erroneously pay terminated employees. App., *infra*, 169a. But the court rejected government’s other asserted harms and concluded that financial injury alone could not outweigh respondents’ asserted harms in the loss of “statutorily mandated services.” *Id.* at 168a-171a.

6. On June 5, at 9:41 a.m.—the morning after the court of appeals’ decision—respondents moved for an “emergency status conference,” asserting that the government’s failure to “restore[] * * * the status quo prior to January 20” within nine business days raised questions about the Department’s compliance. D. Ct. Doc. 142, at 1-2 (June 5, 2025) (capitalization omitted). The district court granted respondents’ motion 19 minutes later and set an emergency hearing for this coming Monday, June 9, at 3 p.m. D. Ct. Docket entries Nos. 143-144 (June 5, 2025).

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a preliminary injunction entered by a federal district court. See, e.g., *Brewer v. Landrigan*, 562 U.S. 996 (2010); *Brunner v. Ohio Republican Party*, 555 U.S. 5 (2008) (per curiam). To obtain such relief, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors strongly support a stay here.

A. The Government Is Likely To Succeed On The Merits

More than two months after the RIF’s announcement, the district court immediately ordered the Department of Education to reverse the RIF, restore the January 20, 2025 status quo, and reinstate nearly 1400 employees to active status. That injunction is legally flawed for multiple reasons. First, respondents—States, school districts, and unions representing teachers and school employees—lack any non-speculative harm to support Article III standing. Respondents hypothesize that downsizing *might* halt the Department’s statutory obligations, but the Secretary of Education has determined that it will not. Such speculation cannot show a cognizable injury, let alone causation or redressability. The injunction is jurisdictionally barred for another reason: The CSRA is the exclusive means for challenging federal personnel actions. Finally, the injunction exceeds courts’ traditional remedial authority. The court ordered the reinstatement of nearly 1400 employees even though respondents allege adverse effects on only certain departmental services carried out by specific employees and even though reinstatement of public officials is not a remedy traditionally available in equity. Each of these errors independently warrants relief.

1. States, school districts, and teachers' unions lack Article III standing to challenge government downsizing

a. Courts adjudicate cases or controversies, which rest on legally cognizable injuries to specific protected interests, not the public's views about how the government should be run. Under Article III, federal courts “do not exercise general legal oversight of the Legislative and Executive Branches.” *TransUnion LLC v. Ramirez*, 594 U.S. 413, 423-424 (2021). Instead, a plaintiff must establish an injury that is both “legally and judicially cognizable.” *Raines v. Byrd*, 521 U.S. 811, 819 (1997). “This requires, among other things, that the plaintiff have suffered ‘an invasion of a legally protected interest which is ... concrete and particularized,’ and that the dispute is ‘traditionally thought to be capable of resolution through the judicial process.’” *Ibid.* (citations omitted).

To establish standing, “a plaintiff must demonstrate (i) that she has suffered or likely will suffer an injury in fact, (ii) that the injury likely was caused or will be caused by the defendant, and (iii) that the injury likely would be redressed by the requested judicial relief.” *FDA v. Alliance for Hippocratic Med.*, 602 U.S. 367, 380 (2024). Only “actual or imminent” injuries count. *Id.* at 381. Allegations that are “too speculative” or merely assert “*possible* future injury” do not suffice. *Clapper v. Amnesty Int’l*, 568 U.S. 398, 409 (2013) (citations omitted). Injuries that are “self-inflicted” likewise do not support standing. *Id.* at 418.

b. In granting the preliminary injunction, the district court violated those bedrock principles. First, the court accepted a standing theory rife with speculation. While the court of appeals asserted without citation that the district court made “detailed and extensive factual findings” “that the Department was already unable to carry out statutorily assigned functions in consequence of the RIF,” App., *infra*, 156a,

the district court’s opinion and the record tell a different story. In 19 places, the district court relied on purported “uncertain[ty]” over the Department’s ability to provide funding and carry out its statutory objectives as an Article III injury. *Id.* at 2a, 25a, 27a, 29a-30a, 38a-39a, 64a-66a, 68a, 84a.

For example, the state respondents fear that the RIF would put federal student aid “at risk.” D. Ct. Doc. 70, at 34; accord D. Ct. Doc. 71-26 ¶ 34.e (Mar. 24, 2025) (alleging calls from parents concerned about financial aid). They allege that they are “unsure whether the Education Department will be able to provide” next year’s student aid “[i]f the Education Department does not have sufficient staff.” D. Ct. Doc. 71-18 ¶ 14 (Mar. 24, 2025). Likewise, the school-district respondents worry that students “would suffer learning losses” “if [the district] must cut its summer program” due to “funding uncertainty.” 25-cv-10677 Doc. 26, at 27 (Apr. 1, 2025). And they fear “the loss of or delay in funds” to local schools, which would “threaten[] to reduce school staff, increase class sizes, exacerbate teacher shortages, diminish educational opportunities for students, terminate afterschool programs, and erode support services for students with disabilities.” App., *infra*, 24a-25a; accord *id.* at 30a-31a. Similarly, the union respondents fear the loss of federal student aid without which union members “would be forced to forgo higher education, default on existing loans, or potentially opt out of careers in public service.” *Id.* at 40a-41a, 79a.

In short, the district court accepted as sufficient allegations that respondents “*fear*” harms to “quality education,” that they “*may* be unable to plan for” the future, and that they “would be forced to forgo higher education” *if* federal student aid vanished. App., *infra*, 26a, 30a, 40a, 79a (emphases added). Elsewhere, the court expressed the view that, “prior to the RIF, the Department was already struggling to meet its goals,” so it would be “only reasonable to expect that a RIF of this magnitude

will likely cripple the Department.” *Id.* at 3a.

As a factual matter, those claims are incorrect. The government has been adamant that “the Department of Education is not closed and is not closing absent an act of Congress.” App., *infra*, 130a. As the press release announcing the RIF says, the Department “will continue to deliver on all statutory programs that fall under the agency’s purview.” RIF Press Release. Employees affected by the RIF have been on administrative leave for over two months, and the Secretary just requested \$66.7 billion in funding. McMahon Testimony 2. Respondents’ speculation that the RIF will cause the Department to suddenly cease operations has no basis in reality.

Further, as a legal matter, uncertainty, fear, mayes, and ifs do not create Article III standing. Respondents have not identified any actual losses of federal funds or financial aid. Respondents offer only rank speculation that an agency with over 2000 remaining employees will abruptly halt its statutory functions—contrary to the Administration’s repeated representations and the reality on the ground. Respondents thus hypothesize that (1) reduced staffing will impede Department services, (2) those impediments will delay or halt the services respondents use, and (3) the loss or delay of services will cause downstream harms like increased class sizes or loan defaults. That “attenuated chain of possibilities[] does not satisfy the requirement that the threatened injury must be certainly impending.” *Clapper*, 568 U.S. at 410

Respondents’ failure to demonstrate standing should be unsurprising given the timing of this litigation. While the courts below faulted the government for not putting on its own evidence, App., *infra*, 35a, 155a, 156a n.3, 173a, *plaintiffs* bear the burden to establish standing at the time the suit is filed. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 561, 569 n.4 (1992). Yet the state respondents sued a mere two days after the RIF’s announcement, before any affected employee had even begun

administrative leave. D. Ct. Doc. 1 (Mar. 13, 2025). The school-district and union respondents sued less than two weeks later. 25-cv-10677 D. Ct. Doc. 1 (Mar. 24, 2025). The two sets of respondents then filed their preliminary-injunction motions and supporting declarations on March 24 and April 1—a mere 3 and 11 days, respectively, after the first employees began leave. D. Ct. Doc. 69 (Mar. 24, 2025); 25-cv-10677 D. Ct. Doc. 25 (Apr. 1, 2025). While the state respondents later filed supplemental declarations from current and former Department employees, D. Ct. Doc. 102 (Apr. 18, 2025); D. Ct. Doc. 124-1 (May 3, 2025), they notably failed to offer any supplemental evidence of their *own* harm. The district court thus cannot have conceivably or credibly found that the Department has ceased functions on which respondents rely because the record was largely submitted before the effects of the RIF could have even been apparent.

Below, respondents alleged only a handful of actual effects on Department services in the extremely short window between the RIF’s announcement and the preliminary-injunction briefing. Those minor effects do not demonstrate an actual, concrete injury. And respondents fail to tie those effects to the RIF or to the sweeping remedy of mass reinstatement, so they also fail to establish causation or redressability. For example, New Jersey officials saw an online notice about “delays in connecting to a live help desk agent” for a tech-support hotline due to “severe staffing restraints,” yet they do not allege ever attempting to call that hotline. D. Ct. Doc. 71-29 ¶ 29 (Mar. 24, 2025); see also D. Ct. Doc. 71-26 ¶ 34.b (alleging “significant[] decline[]” in customer service at call center). New York asserted such “challenges” in obtaining funding as having to send requests to a different email address and obtain one Department official’s sign-off. D. Ct. Doc. 71-31 ¶ 7 (Mar. 24, 2025). And one public college asserted that the Department took four months to approve a new cam-

pus—although respondents elide that the college applied in early December 2024, during the previous Administration, and the application was approved barely a month after the RIF’s announcement. D. Ct. Doc. 71-43 ¶¶ 7-12 (Mar. 24, 2025); D. Ct. Doc. 101, at 6 n.9 (Apr. 18, 2025); see App., *infra*, 71a, 76a-77a (twice highlighting this example); see also D. Ct. Doc. 71-40 ¶ 6 (Mar. 24, 2025) (another college’s allegation that the Department failed to approve an application between August 29, 2024—during the prior Administration—and March 17, 2025—before anyone had begun administrative leave).

To the extent those allegations are harms at all, they come nowhere close to establishing that the RIF *caused* a particular delay in services, let alone that those delays will continue going forward, or that reversing the RIF and reinstating nearly 1400 employees would restore services to the level respondents desire. The district court asserted, without citation or analysis, that those “injuries to Plaintiff States and School Districts would not have occurred in the absence of the RIF.” App., *infra*, 40a. But respondents have not attempted to show, for example, that the delay in approving the college’s new campus was caused by the RIF or that reinstating any particular employee would speed up processing times. If anything, the speedy approval of a new campus after the RIF refutes the alleged harms and demonstrates respondent’s inability to establish causation or redressability.

The court of appeals “highlight[ed]” the district court’s findings about the Department’s Institute for Education Services and Office of Federal Student Aid as its purported best examples of actual impacts. App., *infra*, 155a n.2. Those findings are equally speculative. As for the Institute for Education Services, the Department’s research and statistics division, the district court cited declarations by three John Doe declarants who claim to work at the Department. *Id.* at 70a. Those declarants

asserted their “belie[f]” that the remaining staff could not carry out their “statutory obligations,” D. Ct. Doc. 71-64 ¶ 13 (Mar. 24, 2025), and that cuts would have a “major impact” on data collection, D. Ct. Doc. 102-10 ¶ 10 (Apr. 18, 2025). But the Institute’s statutory obligation is simply to “conduct and support scientifically valid research activities” and promote and disseminate that research. 20 U.S.C. 9512. Respondents are not entitled to any particular level of research or data, so respondents cannot possibly have an Article III injury from any hypothetical reduction in the Department’s research output. Regardless, as the Secretary recently confirmed, the Institute continues to operate as “a more effective and efficient research organization.” McMahon Testimony 3.

As for the Office of Federal Student Aid, the district court again relied on speculation. While the court sweepingly stated that “[t]he RIF has resulted in the practical elimination of most, if not all, essential offices within the [Office],” the court’s actual analysis was far more limited. App., *infra*, 74a.⁵ The court relied heavily on cuts to the Vendor Oversight Group, a group that conducts “oversight and compliance” to ensure that loan servicers are not overbilling the federal government. *Id.* at 74a-75a; accord *id.* at 76a (discussing another group’s work to “safeguard[] taxpayer funds”). But respondents plainly lack standing to prevent overbilling to the federal government. And, in any event, the cited John Doe declaration describes that group as merely a “second line of defense” and documents the impacts of other Administration policies—such as those involving telework and diversity, equity, and inclusion—that have nothing to do with the RIF. D. Ct. Doc. 102-8 ¶¶ 14, 38-42 (Apr. 18, 2025).

⁵ The court of appeals stated that the district court “found that ‘the entire team that supervises [the Free Application for Federal Student Aid (FAFSA)] was eliminated,’ such that ‘the administration of FAFSA applications will be disrupted.’” App., *infra*, 155a n.2 (quoting *id.* at 24a, 27a). That is incorrect. The quoted passages summarize the complaints’ allegations, not the district court’s findings.

The court also invoked (App., *infra*, 76a) a John Doe declaration from a terminated Department employee who asserted that his division, which offers back-end technology support for some Department products, could not “fulfill its duties following such vast cuts,” although he admittedly did “not know how many employees in the division remain” and did not explain why other information-technology divisions could not perform the same functions. D. Ct. Doc. 71-61 ¶¶ 12-13 (Mar. 24, 2025). That paper-thin speculation that the RIF *might* harm services which respondents utilize does not establish a concrete, actual or imminent injury.

This Court rejected on standing grounds a similar effort by end-users of government services to challenge federal terminations in *OPM v. AFGE*, No. 24A904, 2025 WL 1035208, at *1 (Apr. 8, 2025), and it should do the same here. The court of appeals distinguished the terminations in *OPM* as involving only probationary employees and not seeking to “dismantle” the agency. App., *infra*, 158a (citation omitted). But the basic standing flaw is the same: Users of government services can only speculate that terminating specific employees will harm the services they use and that reinstatement will cure those asserted harms.

c. Respondents face yet further hurdles on redressability. Respondents have disclaimed any relief that would “prevent the agency from terminating employees lawfully in the future” even via “further RIFs”; they just dislike this RIF specifically because, in their view, it prevents the Department from meeting its “statutory mandates.” App., *infra*, 101a, 114a; accord *id.* at 135a. In other words, respondents would apparently have no objection if the Department shuttered every discretionary function tomorrow and dismissed every employee who carries out those functions. That concession should doom respondents’ standing on redressability grounds since respondents have no statutory right to any particular level of government services.

For example, union respondents allege that they use the Department’s guidance documents when advising members. *Id.* at 33a. But the Department has no obligation to publish specific guidance. Likewise, state respondents have no statutory entitlement to prompt Department approval of new campuses. Even with all its previous employees, the Department might decide that a particular application warrants extended review or should be denied. Respondents’ asserted harms are simply untethered from a requirement that the Department must retain nearly 1400 employees whom the Secretary considers unnecessary.

Adding to the mismatch, the district court granted respondents’ request for sweeping relief against the President’s executive order directing the Secretary to “facilitate the closure of the Department” “to the maximum extent appropriate and permitted by law” “while ensuring the effective and uninterrupted delivery of services, programs, and benefits.” App., *infra*, 88a; Exec. Order No. 14,242, § 2(a), 90 Fed. Reg. 13,679, 13,679 (Mar. 20, 2025). And the court enjoined the government from “carrying out” the President’s proposal to transfer certain functions to other agencies. App., *infra*, 88a. But those actions plainly do not harm respondents. Respondents decry the disruption of services, not their “uninterrupted delivery.” Exec. Order No. 14,242, § 2(a), 90 Fed. Reg. at 13,679. And respondents can offer no more than speculation that other agencies would not provide the same services just as effectively.

At a minimum, the handful of allegations that specific respondents suffered some delay or disruption in a specific service cannot justify sweeping relief increasing the Department’s workforce by 60%. That injunction restores employees whose departure has no conceivable link to respondents’ asserted injuries and who have no connection to redressing their asserted harms. For example, state respondents highlight allegations that the Department’s Performance Improvement Office will cease

operations. States’ C.A. Stay Opp. 7-8 (discussing D. Ct. Doc. 124-1). But respondents do not even allege that they depend upon or use that office, which advises the Department on long-term strategic planning and internal quality improvement. See 31 U.S.C. 1124(a)(2). Yet the injunction would require the restoration of all of those employees, even though they have nothing to do with respondents. Likewise, the injunction would require the Department to reopen an office in Dallas, whose functions were transferred to Kansas City. See App., *infra*, 79a. But respondents do not allege that they used the Dallas office, which served Texas, Louisiana, and Mississippi—States that all signed an amicus brief *supporting* the RIF. D. Ct. Doc. 97-1 (Apr. 14, 2025). Article III does not permit end users of government services to leverage alleged delays in particular services into mass reinstatement by judicial fiat.

d. The district court compounded its error by relying on multiple theories of harm that are not cognizable under this Court’s precedents. Take the district court’s reliance on allegations that the RIF may “impede[] access to vital knowledge.” App., *infra*, 84a. Among other allegations, a school district claimed to need “training and information” from the Department to address “racial bias” with “compassion and empathy.” 25-cv-10677 D. Ct. Doc. 27-9 ¶¶ 31-33 (Apr. 1, 2025). A professor who belongs to a respondent union alleged that he looks at Department data during his research. 25-cv-10677 D. Ct. Doc. 27-14 ¶ 11 (Apr. 1, 2025). And another union alleged that it reviews Department guidance documents when advising members. 25-cv-10677 D. Ct. Doc. 27-12 ¶ 27 (Apr. 1, 2025).

Those amorphous claims of informational injury do not support Article III standing. This Court has accepted an informational-injury theory only where “public-disclosure or sunshine laws * * * entitle[d] all members of the public to certain information.” *TransUnion*, 594 U.S. at 441; accord *Alliance*, 602 U.S. at 395-396 (re-

jecting informational-injury theory where plaintiffs did “not suggest[] that federal law require[d]” dissemination). This Court has never held that every member of the public who appreciates or uses some government data source, website, or other publication has Article III standing to challenge the removal or modification of that publication. Otherwise, every mine-run government website update, change in data practices, or discontinuation of outdated print editions could support a federal suit. And respondents’ claims of informational injury suffer from the same failure to show causation and redressability as respondents’ other alleged injuries—they make no plausible showing that the reduction in force rendered such information unavailable, or that reinstating those employees will make it more readily available again.

The district court also allowed the state respondents to assert the rights of their citizens—a clear violation of the rule that “States do not have ‘standing as *parens patriae* to bring an action against the Federal Government.’” *Murthy v. Missouri*, 603 U.S. 43, 76 (2024) (quoting *Haaland v. Brackeen*, 599 U.S. 255, 295 (2023)). For example, the “States fear that equal access to quality education may be restricted within their [S]tates.” App., *infra*, 26a. And they worry that higher education could “become more expensive for students in Plaintiff States.” *Ibid*. But if those speculative harms existed at all, they would be borne by *students*, not States. Yet the district court ignored that jurisdictional defect.

The district court also accepted the theory that supposed uncertainty over the Department’s operations will “hinder long term planning” for school districts. App., *infra*, 84a. But such uncertainty, to the extent it exists, is equally attributable to the ongoing debate over whether Congress should close the Department—an action that has not been taken and is not ripe for judicial review. On top of that, school districts’ response to that uncertainty is an entirely “self-inflicted” injury and thus not cogniza-

ble. *Clapper*, 568 U.S. at 418. One school district, for example, alleges that it may cancel summer school because of “doubts about the availability of federal funds.” 25-cv-10677 D. Ct. Doc. 27-7 ¶ 48 (Apr. 1, 2025). But the Department has not threatened to cut off funding or directed the district to cancel summer school; that is a choice the district is considering based on its fear of some hypothetical future federal action. “[R]espondents cannot manufacture standing merely by inflicting harm on themselves based on their fears of hypothetical future harm that is not certainly impending”—even were those fears “reasonable.” *Clapper*, 568 U.S. at 416.

Similarly, the district court accepted the state respondents’ claim that they must “fill the gap” due to perceived federal underenforcement of civil-rights laws. App., *infra*, 80a. But States cannot sue the federal government simply because they would prefer more robust enforcement of federal laws. Cf. *United States v. Texas*, 599 U.S. 670, 674 (2023). And States likewise cannot “manufacture standing” by choosing to take on more law enforcement for themselves. See *Clapper*, 568 U.S. at 416. Otherwise, some State could always assert standing to challenge virtually every shift in federal enforcement priorities. Across the board, the kinds of injuries that respondents assert are not ones “traditionally thought to be capable of resolution through the judicial process.” *Texas*, 599 U.S. at 676 (citation omitted).

2. The district court lacked subject-matter jurisdiction to assess the legality of government personnel actions

Separately, the government is likely to succeed on the merits because the district court lacked jurisdiction to assess the legality of the Department’s RIF or to summarily command the reinstatement of nearly 1400 employees based on its determination that the “mass terminations” were unlawful. See, e.g., App., *infra*, 49a. That assertion of jurisdiction is especially remarkable because the district court

acknowledged that, for “a more limited RIF, the appropriate challenge would have been brought by aggrieved agency personnel before the [MSPB],” or, by unions, before the FLRA. *Id.* at 42a. The court of appeals, too, acknowledged the “concern that the CSRA may not be bypassed by the mere recharacterization of a challenge to a termination of employment,” yet asserted that Congress did not intend to foreclose challenges to “firing [agency] employees en masse.” *Id.* at 160a-161a. But courts cannot evade the CSRA and order reinstatement en masse by recasting a suit against larger-scale terminations as instead challenging “the impact that those terminations have” on an agency. *Id.* at 43a; see *id.* at 160a-161a. The CSRA’s comprehensive, exclusive review scheme does not recede when the number of terminations reaches an undefined tipping point that a court identifies as affecting particular functions. Nor can outsiders to the CSRA system—like States and other non-employees—hijack that process by bringing federal-district-court suits that target the consequences of employees’ terminations and insist on their reinstatement.

a. Congress has “‘established a comprehensive system for reviewing personnel action[s] taken against federal employees’” that provides the “exclusive means” for that review. *Elgin v. Department of the Treasury*, 567 U.S. 1, 5, 8 (2012) (citation omitted). The CSRA, which includes the FSLMRS for federal labor-management relations, 5 U.S.C. 7101-7135, sets out an “integrated scheme of administrative and judicial review” for challenges to personnel actions taken against members of the civil service. *United States v. Fausto*, 484 U.S. 439, 445 (1988). That scheme permits some, but not all challenges; it channels those challenges to agencies; and it grants exclusive jurisdiction over MSPB appeals to the Federal Circuit. See *Elgin*, 567 U.S. at 5-6 & n.1; 5 U.S.C. 7703(b)(1); see also 5 U.S.C. 7105(a)(2), 7123(a).

Here, the employees themselves have not sued. Instead, States, school dis-

tricts, and teachers' unions have challenged federal employees' terminations by objecting to the projected consequences of the employees' absence and demanding reinstatement. If tangentially affected parties could challenge the legality of personnel actions and obtain reinstatement of terminated employees without the constraints that apply to the aggrieved employees and the unions that represent them, that would turn the structure of the CSRA "upside down." *Fausto*, 484 U.S. at 449. Beneficiaries of government services—who are, at most, indirectly affected by a termination—should not be able to leapfrog the employees whom the legislative scheme seeks to protect and potentially coopt the remedies that those employees may or may not seek in CSRA proceedings. Indeed, we are informed that at least two employees affected by the RIF have already filed individual appeals with the MSPB; absent the injunction, more appeals would presumably follow the June 9 termination date. Allowing separate litigation by collaterally affected parties would "seriously undermine[]" "[t]he CSRA's objective of creating an integrated scheme of review," *Elgin*, 567 U.S. at 14, and harm "the development * * * of a unitary and consistent Executive Branch position on matters involving personnel action," *Fausto*, 484 U.S. at 449.

b. The district court acknowledged that, "had the Department eliminated only a single program office or conducted a more limited RIF," the CSRA would foreclose respondents' claims. App., *infra*, 42a. But the court viewed "the magnitude and the proportion of the mass terminations" as differentiating respondents' challenge. *Ibid.* The court of appeals likewise brushed aside CSRA case law as not applying where "mass terminations [a]re *explicitly* implemented to shut down [an agency]." *Id.* at 160a (citation omitted; brackets in original). But the CSRA contains no statutory exception based on the number of employees affected or the purported effect of terminations. Hence, courts have upheld the CSRA's exclusivity against "collateral, sys-

temwide challenge,” explaining that “what you get under the CSRA is what you get.” *Fornaro v. James*, 416 F.3d 63, 67 (D.C. Cir. 2005) (Roberts, J.). The district court’s remedy makes clear that this is a personnel dispute: The court ordered the “reinstate[ment]” of “federal employees whose employment was terminated or otherwise eliminated.” App., *infra*, 88a.

The district court also determined that respondents’ suit should proceed because they “are not federal employees or labor unions who have access to the MSPB or FLRA under the CSRA.” App., *infra*, 43a. But that gets things backwards. The “exclusion” of respondents—who are States, school districts, and teachers’ unions—“from the provisions establishing administrative and judicial review for personnel action” of the type challenged here “*prevents* [them] from seeking review” under other provisions. *Fausto*, 484 U.S. at 455 (emphasis added); see, e.g., *Block v. Community Nutrition Inst.*, 467 U.S. 340, 347 (1984) (recognizing that where a statute omitted a “provision for participation” by dairy consumers, but allowed participation by dairy producers and handlers, “Congress intended to foreclose consumer participation in the regulatory process” and “intended a similar restriction of judicial review”); *Grosdidier v. Chairman*, 560 F.3d 495, 497 (D.C. Cir.) (Kavanaugh, J.) (“[T]he CSRA is the exclusive avenue for suit even if the plaintiff cannot prevail in a claim under the CSRA.”), cert. denied, 558 U.S. 989 (2009). Respondents’ exclusion from the CSRA reflects Congress’s considered judgment about the limitations of who should be permitted to challenge a personnel decision, not a green light to sue in federal district courts and jump ahead of the employees’ own litigation.

The district court further suggested that respondents’ claims are not precluded because they suffer harms “distinct” from those typically covered by the CSRA. App., *infra*, 44a (citation omitted). But respondents’ core argument is that the govern-

ment’s personnel action was unlawful, and they persuaded a district court to reverse the RIF via a preliminary injunction that compels the Department to reinstate nearly 1400 people. Reinstatement and other means of undoing personnel actions are exactly the relief that federal employees can seek through the CSRA. Respondents’ claims, like those in *Elgin*, are simply “the vehicle by which [respondents] seek to reverse the removal decisions.” 567 U.S. at 22 (constitutional claims fall within the CSRA scheme).

The court of appeals ignored this Court’s decision in *Elgin*, and dismissed *Fausto* in a footnote string cite. See App., *infra*, 160a n.4. The court instead invoked *Axon Enterprise, Inc. v. FTC*, 598 U.S. 175 (2023), as endorsing broad federal-court jurisdiction. App., *infra*, 161a; see also States’ C.A. Br. 17; Somerville C.A. Br. 17. But *Axon* cuts the other way here. In *Axon*, the challenges were “to the structure or very existence of an agency”—*i.e.*, that “an agency is wielding authority unconstitutionally.” 598 U.S. at 189. *Axon* explicitly distinguished the challenges there from *Elgin* and a “specific substantive decision” like “firing an employee.” *Ibid.* And *Axon* reaffirmed that a challenge to a termination is “precisely the type of personnel action [that is] regularly adjudicated by the MSPB.” *Id.* at 187 (citation omitted).

If the lower courts’ view of the CSRA prevailed, downstream users of government services could always challenge RIFs in federal district court—thereby circumventing the CSRA’s highly specific requirements that the employees themselves must first pursue administrative relief. School districts, teachers’ unions, and many others could challenge the Department’s RIF in every judicial district, requiring the government to run the table or risk an injunction. Indeed, the district court below issued its injunction the day after the United States District Court for the District of Columbia refused to issue a preliminary injunction against part of the same RIF. *Carter v.*

United States Dep't of Educ., No. 25-744, 2025 WL 1453562, at *1 (May 21, 2025). Yet the district court's injunction here rendered that ruling meaningless.

This Court's intervention is essential to halt such perverse results and the one-way litigation ratchet. Numerous courts in recent months and years have concluded that similar federal-employment suits are precluded. See, e.g., *AFGE v. Trump*, 929 F.3d 748, 753, 761 (D.C. Cir. 2019) (challenge to three executive orders governing collective bargaining and grievance processes); *American Foreign Serv. Ass'n v. Trump*, No. 25-cv-352, 2025 WL 573762, at *8-*11 (D.D.C. Feb. 21, 2025) (challenge to employees' placement on administrative leave); *National Treasury Emps. Union v. Trump*, No. 25-cv-420, 2025 WL 561080, at *5-*8 (D.D.C. Feb. 20, 2025) (challenge to terminations of probationary employees, anticipated RIFs, and deferred-resignation program); *AFGE v. Ezell*, No. 25-10276, 2025 WL 470459, at *1-*3 (D. Mass. Feb. 12, 2025) (challenge to deferred-resignation program); see also *Maryland v. USDA*, No. 25-1338, 2025 WL 1073657, at *1 (4th Cir. Apr. 9, 2025) ("The Government is likely to succeed in showing the district court lacked jurisdiction over Plaintiffs' claims" challenging the "terminat[ion] [of] thousands of probationary federal employees"); but see *AFGE v. OPM*, No. 25-1780, 2025 WL 900057, at *1 (N.D. Cal. Mar. 24, 2025) (asserting jurisdiction over challenge to probationary-employee terminations). Respondents' suit is likewise precluded. This Court should not allow federal district courts to circumvent the comprehensive scheme that Congress has dictated for challenges to employee terminations and RIFs.

3. Ordering the government to reinstate nearly 1400 employees was an unlawful remedy

Finally, the government is independently likely to prevail because the district court vastly exceeded its remedial authority by ordering the reinstatement to active

status of nearly 1400 employees. Reinstatement is not an available remedy under the APA because it exceeds courts' historical authority in equity. Even where reinstatement is a permissible remedy, this Court has recognized that it requires an elevated showing. Respondents' threadbare allegations come nowhere close.⁶

a. Respondents brought putative APA challenges to the RIF (in addition to constitutional and ultra vires claims), but APA Section 705 “was primarily intended to reflect existing law * * * and not to fashion new rules of intervention for District Courts.” *Sampson v. Murray*, 415 U.S. 61, 69 n.15 (1974) (citation omitted). The APA thus authorizes a court to grant injunctive relief subject to traditional equitable limitations. See 5 U.S.C. 702(1). Absent express statutory authority, a federal court may grant only those equitable remedies that were “traditionally accorded by courts of equity.” *Grupo Mexicano de Desarrollo, S.A. v. Alliance Bond Fund, Inc.*, 527 U.S. 308, 319 (1999).

Reinstatement was not a traditionally available remedy at equity. See *Sampson*, 415 U.S. at 83. To the contrary, courts of equity lacked “the power * * * to restrain by injunction the removal of a [public] officer.” *In re Sawyer*, 124 U.S. 200, 212 (1888); see, e.g., *Baker v. Carr*, 369 U.S. 186, 231 (1962) (decisions that “held that federal equity power could not be exercised to enjoin a state proceeding to remove a public officer” or that “withheld federal equity from staying removal of a *federal* officer” reflect “a traditional limit upon equity jurisdiction”); *Walton v. House of Representatives*, 265 U.S. 487, 490 (1924) (“A court of equity has no jurisdiction over the appointment and removal of public officers.”); *Harkrader v. Wadley*, 172 U.S. 148, 165

⁶ The court of appeals questioned whether the government preserved its objection to the district court's remedy, App., *infra*, 166a, but the court of appeals “passed upon” the issue, making this Court's review manifestly proper, *United States v. Williams*, 504 U.S. 36, 41 (1992).

(1898) (“[T]o sustain a bill in equity to restrain * * * the removal of public officers, is to invade the domain of the courts of common law, or of the executive and administrative department of the [g]overnment.”); *White v. Berry*, 171 U.S. 366, 377 (1898) (“[A] court of equity will not, by injunction, restrain an executive officer from making a wrongful removal of a subordinate appointee, nor restrain the appointment of another.” (citation omitted)).

The creation of new remedies is “a legislative endeavor,” *Egbert v. Boule*, 596 U.S. 482, 491 (2022), and courts of equity lack “the power to create remedies previously unknown to equity jurisprudence,” *Grupo Mexicano*, 527 U.S. at 332. Accordingly, where Congress departs from equitable tradition, it does so expressly. In the CSRA, Congress authorized the MSPB to award “reinstatement,” as well as “back-pay” to prevailing employees, and it has authorized review of the MSPB’s decisions in the Federal Circuit. *Elgin*, 567 U.S. at 6 (citing 5 U.S.C. 1204(a)(2), 7701(g), and 7703(b)(1)); see, e.g., 42 U.S.C. 2000e-5(g) (empowering courts to grant “reinstatement” as well as “back pay” as remedies for employment discrimination). But respondents are not entitled to bring claims under the CSRA, nor did they follow CSRA-required procedures. More broadly, no statute authorizes courts to reinstate public employees in order to improve government services to third parties. The district court lacked the power to grant the reinstatement remedy here.

Even where Congress has authorized reinstatement, this Court has recognized that a grant of preliminary-injunctive relief in government personnel cases requires an elevated showing. *Sampson*, 415 U.S. at 84. The Court emphasized the historical denial of a reinstatement power to courts of equity, citing “the well-established rule that the Government has traditionally been granted the widest latitude in the dispatch of its own internal affairs, and the traditional unwillingness of courts of equity

to enforce contracts for personal service,” and instructing that a plaintiff in a “Government personnel case[]” must “at the very least * * * make a showing of irreparable injury sufficient in kind and degree to override these factors cutting against the general availability of preliminary injunctions.” *Id.* at 83-84 (citation and internal quotation marks omitted). The district court disregarded those principles by ordering the Executive to “reinstate” nearly 1400 employees to redress speculative potential harms to entities other than the employees themselves. App., *infra*, 88a. Even if those harms met the bare minimum required for Article III (and for the reasons already explained, they do not), they could not provide the basis for reinstating nearly 1400 employees that the Executive has chosen to dismiss.

b. In the court of appeals’ view, reinstatement is an available remedy because this case implicates the “authority to remedy the effective disabling of a cabinet department of its statutorily assigned functions.” App., *infra*, 166a-167a. But there is no large-numbers exception whereby federal courts attain new equitable powers when enough federal employees are affected. The court acknowledged that respondents challenge the “mass termination” that purportedly caused the disabling of the Department. *Id.* at 167a. It would be perverse for courts to lack equitable authority to order one reinstatement but retain equitable authority to order nearly 1400.

The district court’s sweeping order was particularly unjustified considering the mismatch between the remedy and the harms alleged. Respondents’ central claim is that “the massive reduction in staff has made it effectively impossible for the Department to carry out its statutorily mandated functions.” App., *infra*, 2a. But the court did not even try to tailor its reinstatement order to restore any particular function or functions upon which respondents allege they rely, let alone confirm that all those functions are statutorily mandated and not discretionary. Instead, the court ordered

the blanket reinstatement of nearly 1400 employees whom the Department has determined are unnecessary, without regard to those particular employees' roles and responsibilities or to how they relate to the harms that respondents allege.

Regardless, had the Department failed to carry out its mandatory functions, the proper recourse would be to challenge particular failures. Any claim that the Department has failed to take a discrete, mandatory agency action to which respondents believe they are legally entitled must be brought under the APA's provision authorizing suits to "compel agency action unlawfully withheld or unreasonably delayed." 5 U.S.C. 706(1); see *Carter*, 2025 WL 1453562, at *8. Or, should the Department fail to disburse funds that respondents believe the Department is obligated to pay, respondents could pursue remedies in the Court of Federal Claims under the Tucker Act, 28 U.S.C. 1491. See *Department of Educ. v. California*, 145 S. Ct. 966, 968 (2025) (per curiam). Respondents may not evade the limits on such actions by seeking mass reinstatement instead.⁷

B. The Other Factors Support Relief From The District Court's Order

In deciding whether to grant emergency relief, this Court also considers whether the underlying issues warrant its review, whether the applicant likely faces irreparable harm, and, in close cases, the balance of the equities. See *Hollingsworth*, 558 U.S. at 190. Those factors overwhelmingly support relief here.

1. The issues raised by this case warrant this Court's review

The district court's order directs applicants to reinstate nearly 1400 employees and "restore[]" the Department "to the status quo prior to January 20, 2025," at least

⁷ The district court compounded its errors by concluding that the RIF was likely unconstitutional, ultra vires, and in violation of the APA. App., *infra* 46a-63a. Although the Court need not address those issues at this stage, the district court's reasoning was incorrect. See Gov't C.A. Stay Mot. 16-19.

insofar as necessary “to carry out its statutory functions.” App., *infra*, 88a. In other words, the district court ordered the current Administration to restore the previous Administration’s discretionary choices about how, and with how many employees, the Department should carry out its statutory duties.

This Court has repeatedly intervened to block lower courts’ attempts to direct the functioning of the Executive Branch, including to stay three preliminary injunctions dictating federal personnel actions in just the last two months. See, *e.g.*, *Trump v. Wilcox*, No. 24A966, 2025 WL 1464804, at *1 (May 22, 2025) (stay of order reinstating two terminated executive-branch officials); *United States v. Shilling*, No. 24A1030, 2025 WL 1300282, at *1 (May 6, 2025) (stay of order enjoining military personnel policy); *OPM*, 2025 WL 1035208, at *1 (stay of order reinstating thousands of federal employees); see also *Heckler v. Lopez*, 463 U.S. 1328, 1329 (1983) (Rehnquist, J., in chambers) (stay of order requiring Secretary of Health and Human Services “immediately to reinstate benefits to the applicants”); *INS v. Legalization Assistance Project*, 510 U.S. 1301, 1305-1306 (1993) (O’Connor, J., in chambers) (stay of order mandating certain immigration procedures, as “an improper intrusion by a federal court into the workings of a coordinate branch of the Government”).

And, as noted, this Court also stayed an order that blocked the Department of Education’s discretionary decision to terminate grants. *Department of Educ.*, 145 S. Ct. at 968-969. The renewed intrusion into the Department’s discretionary decisions about how to manage its own operations similarly warrants review.

2. The district court’s injunction causes irreparable harm to the Executive Branch

As the First Circuit held, the injunction irreparably harms the government by obligating it to continue paying terminated employees, particularly because the dis-

trict court refused to order the mandatory bond. App., *infra*, 169a; see *id.* at 87a; Fed. R. Civ. P. 65(c). That conclusion was correct: This Court recently stayed a similar order mandating the reinstatement of thousands of terminated federal employees. *OPM*, 2025 WL 1035208, at *1. And this Court stayed an injunction requiring the Department to pay unrecoverable funds. *Department of Educ.*, 145 S. Ct. at 968-969. Here too, requiring the government to continue paying nearly 1400 employees that the Executive has determined are unnecessary constitutes clear irreparable harm.

The irreparable harms extend well beyond that unrecoverable fiscal burden. This Court has recognized that “the Government has traditionally been granted the widest latitude in the ‘dispatch of its own internal affairs.’” *Sampson*, 415 U.S. at 83 (citation omitted). And the Court has expressed concern about the intrusion inflicted by a court order directing the reinstatement of a single government employee. See *id.* at 91-92. An order directing reinstatement of nearly 1400 employees—growing an agency’s headcount 60% above the level that politically accountable leaders have deemed appropriate—is intolerable.

Already, the injunction has imposed “complex and costly challenges” on the Department, as it seeks to suddenly “re-onboard[]” nearly 1400 workers. D. Ct. Doc. 139-1 ¶ 10 (June 3, 2025). Before the preliminary injunction—which, again, the district court did not issue for two months following the RIF announcement—the Department had shuttered two of its three buildings in Washington, D.C., moving employees to the main office and cancelling contracts for shuttle-bus service and parking. *Id.* ¶ 7. The Department had modified workflows and begun renegotiating contracts to account for those shifts. *Id.* ¶¶ 8, 10. Employees were in the process of mailing computers and phones back to the Department. *Id.* ¶ 6. The injunction suddenly reverses all of those processes, compelling the Department to turn on a dime to

seek more physical office space, reorganize teams, and work to restore information-technology access. *Id.* ¶ 10.

Exacerbating those burdens, the district court ordered employees to be returned in a manner that “restore[s] * * * the status quo prior to January 20, 2025,” at least such that the Department “is able to carry out its statutory functions.” App., *infra*, 88a. Beyond reinstatement, the injunction thus may require the Department to give employees the same assignments they had before Inauguration Day, regardless of unrelated changes to their duties and the inevitable shift in priorities that comes with a new Administration. Adding to the chaos, the Department must operate in the shadow of serious uncertainty over the legality of the district court’s order, including its potential reversal. And the Department was ordered to report on its progress within 72 hours of the injunction. *Ibid.* Worse, the district court mandated weekly progress reports “until the Department is restored to the status quo prior to January 20, 2025,” apparently to flyspeck job assignments and operations. *Ibid.* Indeed, while the court of appeals found that the injunction imposed no “special timeline” that might prove “unreasonably short or excessively burdensome,” *id.* at 169a n.5, the district court promptly granted respondents’ request for an emergency status conference about whether the Department’s failure to reinstate all employees within nine business days constitutes noncompliance. D. Ct. Docket entries 143-144 (June 5, 2025). Each day this preliminary injunction remains in effect subjects the Executive Branch to judicial micromanagement of its day-to-day operations.

3. The balance of the equities strongly favors the government

The balance of the equities also strongly supports a stay. The crux of the district court’s irreparable-harm finding was the possibility that the RIF could produce “financial uncertainty and delay” for respondents and lead to the loss of services pro-

vided by specific departmental components. App., *infra*, 84a. Even if those speculative injuries sufficed for Article III purposes (which they do not), they cannot outweigh the government’s constitutional authority to manage its internal affairs.

That is particularly so because reinstatement, while extraordinarily burdensome for the government, has at best an attenuated impact on any specific services on which respondents allegedly rely. As the court of appeals recognized, restoration of any services that were in fact affected by the RIF would rely on the independent judgment of employees (who are not parties in this suit) to accept reinstatement to active status. App., *infra*, 171a.

As for the feared losses of funding, App., *infra*, 64a-68a—which, again, respondents have not actually identified—respondents’ claims are decidedly monetary. Should the Department fail to pay money to which respondents claim they are entitled, they are free to take up such contractual disputes in the proper forum, the Court of Federal Claims. See p. 34, *supra*; *Department of Educ.*, 145 S. Ct. at 969. An injunction is therefore unnecessary to prevent any irreparable harm.

The court of appeals collapsed the public-interest factor with the merits, asserting that “there is generally no public interest in the perpetuation of unlawful agency action.” App., *infra*, 171a (quoting *League of Women Voters of the U.S. v. Newby*, 838 F.3d 1, 12 (D.C. Cir. 2016)). But, as detailed below, Gov’t C.A. Stay Mot. 16-19, the RIF is entirely lawful and, in any event, not properly challenged here.

For its part, the district court’s assessment of the public interest rested on its view that the Department plays “a crucial role in education” that “cannot be understated.” App., *infra*, 1a. That statement confirms that the district court strayed from its lane to adjudicate a policy disagreement with the President, who views many of the Department’s functions as better and more efficiently performed by the States—

consistent with the States’ traditional authority over education.

Compounding the impression of policymaking, the district court portrayed the public interest as favoring an injunction given the need for “an educated citizenry [that] provides the foundation for our democracy,” App., *infra*, 86a, and quoted an amicus brief by Democratic members of Congress baselessly accusing “the Trump administration” of trying to “short-circuit[]” Congress’s response to *Brown v. Board of Education*, 347 U.S. 483 (1954), App., *infra*, 86a-87a (quoting D. Ct. Doc. 110, at 9 (Apr. 23, 2025)). That policy-driven view led the district court to inflate respondents’ purported harms and downplay the Executive Branch’s paramount interest in managing its internal affairs. Streamlining a federal agency well known for its inefficiency is hardly an assault on *Brown* or an attack on democracy. Respondents’ asserted harms from diminished government services cannot outweigh the public’s and the government’s strong interest in operating the Executive Branch in line with the President’s priorities.

C. This Court Should Issue An Administrative Stay

The Solicitor General respectfully requests that this Court grant an administrative stay while it considers this application. The district court waited more than two months to enjoin the RIF. Yet the preliminary injunction took immediate effect, directing the government to reinstate every Department of Education employee terminated after January 20, 2025 under the RIF, “restore the Department to the status quo,” and provide the district court with weekly progress reports. App., *infra*, 88a. Respondents and the district court have already signaled their intent to micromanage the Department’s functions, with an emergency status conference set for this coming Monday, June 9, at 3 p.m.—an exigency that confirms the need for an administrative stay. Requiring the Department to reinstate employees who have not performed their

duties for two months, who may have already taken other jobs, and who could be re-fired if the Court later grants a stay risks needless chaos and confusion for all involved and injects the district court into core executive-branch personnel matters. An administrative stay—restoring staffing levels that existed for two months while this lawsuit proceeded and avoiding potentially gratuitous and protracted compliance proceedings—is warranted while the Court assesses this application.

CONCLUSION

This Court should stay the district court’s preliminary injunction. In addition, the Solicitor General respectfully requests an immediate administrative stay of the district court’s order pending the Court’s consideration of this application.

Respectfully submitted.

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Solicitor General

JUNE 2025

APPENDIX

District court order granting preliminary injunction (D. Mass. May 22, 2025).....	1a
Transcript of district court preliminary-injunction hearing (D. Mass. Apr. 25, 2025).....	89a
District court order denying stay (D. Mass. May 23, 2025).....	142a
Court of appeals order denying administrative stay (1st Cir. May 27, 2025).....	145a
Court of appeals order denying stay (1st Cir. June 4, 2025).....	148a